

4. 9:00 AM CASE NUMBER: C23-02697
CASE NAME: IDO ADLER VS. ANDERSON RANCH SINGLE FAMILY OWNERS ASSOCIATION
*HEARING ON MOTION IN RE: LEAVE TO FILE A 2ND AMENDED COMPLAINT
FILED BY: ADLER, IDO
TENTATIVE RULING:

Before the Court is a motion by plaintiffs for leave to file a Second Amended Complaint. The motion is **granted**, as discussed below. Plaintiffs may file and serve the proposed Second Amended Complaint, attached as Exhibit B to the Declaration of Zachary D. Schorr, on or before February 13, 2026.

Background

Parties are familiar with the factual background of this case, which is set forth in the Court's 11/13/25 order denying plaintiffs' MSJ, and need not be repeated here. In sum, this matter involves questions regarding an easement over defendant's property to access plaintiffs' property, including whether one exists and if so, the scope and location.

Plaintiffs filed suit against defendant, Anderson Ranch Single Family Owners Association ("Anderson Ranch") in 2023 and later filed their First Amended Complaint on June 10, 2024. The FAC alleged causes of action for quiet title and declaratory relief and injunctive relief. Anderson Ranch answered on August 13, 2024, asserting sixteen "affirmative defenses."

The Court denied a motion by Anderson Ranch sought to expunge the lis pendens in early 2025 and later that same year, denied a motion for summary adjudication filed by plaintiffs. The order denying summary adjudication specifically noted that a description of the easement would be required to enter judgment on plaintiffs' cause of action for quiet title.

On December 12, 2025, plaintiffs filed this motion for leave to file a Second Amended Complaint ("SAC"). Their proposed SAC is attached to counsel's declaration in support of the motion. (See Declaration of Zachary D. Schorr, hereinafter "Schorr Decl.," Ex. B.) A redline showing proposed changes to the First Amended Complaint is also attached to counsel's declaration. (Schorr Decl., Ex. A.)

Anderson Ranch opposes the motion, arguing it is untimely and that the proposed new causes of action are based on protected activity (litigation conduct) and subject to a motion to strike pursuant to California's Anti-SLAPP statute. Anderson Ranch further argues that the plaintiffs' settlement communications demonstrate improper litigation tactics.

Evidentiary Matters

Plaintiffs' objections to defendant's counsel's declaration are **overruled**.

Discussion

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. The general rule is that the Court should exercise this discretion liberally in favor of amendments, to permit the resolution of all disputed matters between two parties in a single proceeding, up to and including trial. (See, e.g., *Lincoln Prop. Co., N.C., Inc. v. Travelers Indem. Co.*

(2006) 137 Cal.App.4th 905, 916.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428, citation omitted; *Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1048 [“it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment”].) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.)

Prejudice exists where the amendment would impinge a party’s ability to effectively defend itself at trial. (*Estate of Murphy* (1978) 82 Cal.App.3d 304, 311 [with “the jury in the box” and “the trial ready to proceed,” proposed amendment opened up entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial; further, there was no opportunity for parties to conduct any discovery]; see also *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-487 [amendment proposed on the eve of trial and would not permit defendant sufficient time to discover or depose the witnesses who would support the new allegations or to marshal evidence to oppose the claim]; *P&D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345 [amendment not sought until after trial readiness conference].)

In all of these cases, prejudice to the opposing party was found due to the extreme proximity of trial. “Where the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery, refusal of leave to amend cannot be an abuse of discretion.” (*Magpali, supra*, 48 Cal.App.4th at p. 488.) In the absence of prejudice, even unreasonable delay is insufficient to warrant denying a motion for leave to amend. (*Kittredge Sports Co., supra*, 213 Cal.App.3d at 1048.)

While the amendments may lead to new discovery, as set forth in the opposition brief, there is presently no trial date and plaintiffs still have at least two years to bring the matter to trial. Both sides have sufficient time to thoroughly investigate facts related to the new allegations.

Defendant asserts that “[c]ourts have upheld denials of leave to amend when the requesting party fails to provide a reasonable explanation for the delay or when the amendment is sought during or after summary judgment proceedings.” The cases defendant cites for this assertion are specific to summary judgment. In other words, while a plaintiff may, in response to a defendant’s meritorious summary judgment motion, seek leave to amend the complaint in order to overcome issues presented by summary judgment, a plaintiff may not, without explanation, delay in formally seeking such leave to amend until the time of hearing (or right before the hearing) on summary judgment. (See *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 176 [plaintiff waited until hearing; *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1280 [same]; *Levy v. Skywalker Sound* (2003) 108 Cal.App.4th 753, 761 [plaintiff mentioned amending in opposition, but did not file a noticed motion]; *Huff v. Wilkins* (2006) 138 Cal.App.4th 732, 746 [plaintiff waited until three days before the summary judgment hearing to seek leave to add allegations avoiding primary assumption of risk doctrine].) Allowing such last-ditch efforts by plaintiffs would prejudice defendants that go to the trouble of filing summary judgment motions.

The posture of this case is different. It was plaintiffs' motion for summary adjudication that was recently at issue, not any motion by defendant. Accordingly, the scope of the ruling on that motion was simply that plaintiffs were not entitled to judgment on their causes of action for quiet title or declaratory and injunctive relief, or on certain "affirmative defenses." Based on the limited application of that holding, defendant is incorrect that allowing amendment here would undermine the summary adjudication process by relitigating issues already decided. (See Opposition, 11:14-28.)

The Court does not find the sort of prejudice here that warrants a departure from the general rule in favor of permitting amendment.

As to defendant's argument that the motion should be denied because the conduct described in the SAC is subject to an anti-SLAPP motion to strike, the Court declines to deny the motion on that basis which, in any event, is not immediately apparent from the opposition papers. Consideration of the substantive merits should be addressed in future proceedings. (See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 ["we believe that the better course of action would have been to allow [the plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"].)

5. 9:00 AM CASE NUMBER: C23-03064
CASE NAME: REIMAGINE CONSULTING VS. GS AND F PLANTS, INC
***HEARING ON MOTION IN RE: TRANSFER ACTION FOR COORDINATION UNDER CCP 403**
FILED BY: REIMAGINE CONSULTING

TENTATIVE RULING:

Introduction

Plaintiff Reimagine Consulting ("Reimagine") moves for an order to transfer *GS and F Plants, Inc. vs. Lee, et. al.*, (San Bernardino County Superior Court Case No. CIVSB2435845) (the "**San Bernardino Action**") to the above-entitled court for coordination with the above-entitled action. The motion is made on the grounds that the actions involve a common question of fact and law within the meaning of Code of Civil Procedure section 404, meet the standards for coordination specified in Code of Civil Procedure section 404.1, are not complex actions as defined by the Judicial Council, and that the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action.

For the reasons set forth below, Plaintiff's Motion to Transfer for Coordination is GRANTED.

Statement of Facts

Contra Costa Action

This case involves a breach of written contract. On October 12, 2022, Plaintiff and Defendants entered into a purchase agreement (the "Agreement") whereby, Plaintiff agreed to purchase a Natural Gas Generator (the "Generator") in exchange for a purchase price of \$1,000,000.00 USD. The Agreement called for four (4) separate payments. (Hayes Decl. Ex. 2, SAC ¶ 11.) First, Plaintiff paid the initial payment of \$100,000.00 upon signing of the Agreement (the "Initial Payment"). (Id.) Second,